

General Principles, Mens Rea, Actus Reus & Mistake

- **Mistake of Fact for Specific Intent Crimes:** An honest mistake of fact—even if completely unreasonable—negates the specific intent required for crimes like larceny, robbery, burglary, or attempt.
 - *Example:* A cafe patron takes an umbrella from a coat rack genuinely believing it is his identical one; his honest mistake negates the intent to steal, defeating larceny even if his mistake was careless.
- **Mistake of Fact for General Intent Crimes:** For general intent or reckless crimes (like battery or involuntary manslaughter), a mistake of fact provides a valid defense only if the mistake was both honest and objectively reasonable.
 - *Example:* A hunter shoots at a figure in the brush who is dressed in a realistic deer costume for a prank, reasonably believing it is game; his reasonable mistake of fact shields him from an involuntary manslaughter charge.
- **Mistake of Law Is Generally No Defense:** Misreading a criminal statute, misinterpreting an administrative brochure, or relying on legal advice from a friend or private citizen provides no defense to a criminal prosecution.
 - *Example:* A hunter uses a .35 caliber rifle in violation of a state statute barring rifles larger than .30 caliber, genuinely believing the limit was .40 because he misread a brochure; his mistake of law does not excuse the violation.
- **Official Interpretation Exception to Mistake of Law:** Mistake of law excuses criminal conduct only if the defendant reasonably relied on an official, published interpretation of the law issued by a statute, an appellate judicial opinion, or an authorized administrative agency.
 - *Example:* A cheese maker sells unpasteurized milk relying on a formal written advisory opinion issued by the state department of agriculture stating the ban was lifted; she can assert an official interpretation defense.
- **Strict Liability Offenses Dispense with Mens Rea:** For public welfare strict liability crimes (like selling alcohol to minors or selling adulterated dairy), the prosecution must prove only the voluntary physical actus reus; reasonable mistakes of fact regarding age or legality provide no defense.
 - *Example:* A clerk sells alcohol to an underage buyer who presents an extraordinarily realistic fake ID; the clerk remains guilty under a strict liability liquor statute despite her reasonable mistake of fact.
- **Legal Duty to Act by Special Relationship (Omission as Actus Reus):** While there is generally no duty to rescue strangers, failing to act constitutes a criminal omission if a legal duty exists based on a status relationship (parent-child, spouses), contract, creation of peril, or statute.
 - *Example:* A mother who is a strong swimmer stands by and watches her 5-year-old child drown in a lake to avoid ruining her expensive dress; her failure to act satisfies the actus reus for criminal homicide.
- **Duty to Act Created by Assumption of Care or Seclusion:** Voluntarily assuming the care of a helpless person or secluding an injured person so others cannot aid them creates an affirmative legal duty to act.
 - *Example:* A hiker carries an injured stranger into his remote cabin, promising to care for him, but then abandons him without food or medical care; the omission is criminal.

Inchoate Crimes: Solicitation, Conspiracy & Attempt

- **Solicitation Is Complete Upon Asking:** Solicitation is fully completed the instant the defendant asks, commands, or urges another to commit a felony with specific intent; it does not matter if the listener refuses, agrees, or is an undercover police agent.
 - *Example:* A business owner offers an undercover police officer \$5,000 to burn down her failing store for insurance proceeds; the solicitation is complete the moment she asks, even though the officer never intended to assist.
- **Solicitation Merges into Completed Crime or Conspiracy:** Solicitation merges into conspiracy if an agreement is reached, or into the completed target crime if the offense is carried out; the defendant cannot be convicted of both solicitation and the target crime.
 - *Example:* A person asks a hitman to murder his business partner, and the hitman carries out the contract killing; the solicitation merges into the completed murder, making the solicitor liable for murder as an accomplice.
- **Common Law Conspiracy Requires a Bilateral Agreement:** Under traditional common law, conspiracy requires a genuine bilateral agreement—a true meeting of the minds between at least two guilty minds; agreeing with an undercover officer or feigning informant bars common law conspiracy.
 - *Example:* A defendant agrees with an undercover informant to commit an arson; under traditional common law, no conspiracy exists because the informant feigned agreement and lacked true criminal intent.
- **Model Penal Code Unilateral Conspiracy Approach:** Under the modern Model Penal Code rule, conspiracy is judged unilaterally from the individual defendant's perspective; a defendant can be convicted if they themselves agreed, even if their sole partner was an undercover officer.
 - *Example:* A defendant agrees with an undercover DEA agent to import narcotics; under the Model Penal Code unilateral approach, the defendant is guilty of conspiracy.
- **Conspiracy Is Complete Upon the Overt Act:** Conspiracy is complete the moment the agreement is formed and a minimal overt act in furtherance is executed; subsequent change of heart or abandonment never erases the completed conspiracy charge itself.
 - *Example:* Two partners agree to rob a bank, and one buys a ski mask; even if both immediately get cold feet and decide to abandon the plan entirely, they remain guilty of conspiracy.
- **Withdrawal Limits Liability for Future Substantive Crimes Only:** An effective withdrawal does not undo an already completed conspiracy; it only cuts off liability for subsequent crimes committed by co-conspirators in furtherance of the conspiracy.
 - *Example:* After agreeing to rob a bank and buying masks, one partner tells the other "I am out, do not do this" and goes home; he remains guilty of conspiracy, but is not liable for his partner's subsequent robbery attempt.
- **Accomplice and Conspirator Withdrawal Mechanics:** To withdraw effectively and cut off future liability, a conspirator must communicate their withdrawal to all co-conspirators before the crime becomes unstoppable, and neutralize any material aid provided.

- *Example:* A conspirator buys guns for a robbery, but the day before tells his partner he is out, throws the guns in a river, and walks away; his affirmative communication and neutralization terminate future accessorial liability.
- **Wharton's Rule (Two-Party Crimes):** Under Wharton's Rule, if a target offense by definition logically requires two participants (like dueling, bigamy, or bribery), those two people cannot be prosecuted for conspiracy to commit that crime.
 - *Example:* Two rivals mutually agree to meet at dawn in a secluded field to engage in an illegal pistol duel; Wharton's Rule bars a conspiracy charge because dueling inherently requires two participants.
- **Wharton's Rule Third-Party Exception:** Wharton's Rule does not apply if more people participate in the agreement than the minimum number logically required to commit the substantive crime.
 - *Example:* Two business partners agree to bribe a city official, and the official accepts; because three people joined an agreement for a crime requiring only two, all three can be convicted of conspiracy.
- **Co-Conspirators Must Share the Specific Intent:** Conspiracy requires that all participating parties share the specific intent to commit the target offense; a party who continues helping solely for unrelated motives without sharing intent drops out of the conspiracy.
 - *Example:* A driver agrees to smuggle what she thinks is illegal ivory, but discovers mid-trip it is legal plastic; continuing to drive solely to collect a transport fee severs her from the smuggling conspiracy because she no longer intends to smuggle contraband.
- **Attempt Requires Specific Intent and an Overt Act:** Attempt requires the specific intent to commit the target crime and an overt act beyond mere preparation (a substantial step strongly corroborating the criminal purpose).
 - *Example:* A husband pours lethal poison into his wife's evening tea, intending to kill her, but she accidentally knocks the cup over before drinking; he is guilty of attempted murder.
- **Attempted Murder Requires Specific Intent to Kill:** Attempted murder cannot be based on depraved-heart recklessness or intent to inflict grievous bodily harm; it strictly requires a specific subjective purpose to kill.
 - *Example:* An assailant intentionally shoots a victim in the leg to disarm him; even though the shot was intentional and used a deadly weapon, he cannot be convicted of attempted murder without the specific intent to kill.
- **Factual Impossibility Is No Defense to Attempt:** If the defendant would have committed a crime had the facts been as they subjectively believed them to be, factual impossibility does not excuse an attempt charge.
 - *Example:* A niece administers what she believes is a lethal toxin into her uncle's coffee, unaware that he died of natural heart failure minutes earlier; she is guilty of attempted murder.
- **Pure Legal Impossibility Is a Complete Defense:** If the act the defendant intends to commit is not actually prohibited by any valid criminal law, the defendant cannot be convicted of an attempt, no matter how guilty their mind.

- *Example:* A merchant smuggles unpasteurized honey across state lines believing it violates a federal ban, but the statute was repealed a year earlier; he is not guilty of attempt because his conduct was legal.
- **Common Law Rejection of Abandonment for Attempt:** Under traditional common law, once a defendant crosses the line from preparation into an attempt (taking a substantial step), a subsequent voluntary change of heart is no defense.
 - *Example:* An employee uploads a malicious hacking script to a corporate server to steal funds, but feels guilty and deletes it before hitting execute; at common law, she remains guilty of attempted theft.
- **Model Penal Code Voluntary Renunciation for Attempt:** Under the Model Penal Code, voluntary abandonment (renunciation) is a complete defense to attempt if the abandonment is completely voluntary and the defendant successfully prevents the crime.
 - *Example:* Under the MPC, a hacker who uploads a script but genuinely changes her mind, deletes the script, and alerts IT before any money transfers has an affirmative defense of renunciation.

Accomplice Liability & Pinkerton

- **Accomplice Liability Is Derivative:** An accomplice cannot be convicted of a completed substantive crime unless the principal actor actually commits the crime or an attempt.
 - *Example:* A friend lends a burglar a crowbar to break into a home, but the burglar gets cold feet and stays home; the friend cannot be convicted of accomplice liability for burglary.
- **Specific Intent to Facilitate the Target Crime:** To be an accomplice, the defendant must aid, abet, or encourage the principal with the specific intent that the target crime be committed.
 - *Example:* A friend loans a rifle knowing the borrower's hunting license is suspended (a misdemeanor); if the borrower uses the rifle to commit a premeditated murder, the lender is not an accomplice to murder.
- **Merchants and Stake in the Venture:** Selling ordinary goods at standard retail prices with knowledge of the buyer's criminal intent does not create accomplice liability unless the merchant charges an inflated price or acquires an active stake in the venture.
 - *Example:* A hardware clerk charges triple the normal retail price for a crowbar as a "hush fee" after being told it will be used in a burglary; charging an inflated fee gives him a stake in the venture, making him an accomplice.
- **Natural and Probable Consequences Doctrine:** An accomplice is liable for the intended target crime and for any other crimes committed by the principal that are reasonably foreseeable consequences of the crime.
 - *Example:* A getaway driver waits outside while his partner commits an armed bank robbery; when the partner grabs a bank customer as a hostage to escape, the driver is liable for kidnapping as a natural and probable consequence.
- **Pinkerton Doctrine for Co-Conspirators:** Co-conspirators are vicariously liable for all substantive crimes committed by fellow conspirators in furtherance of the conspiracy and within the foreseeable scope of the unlawful plan.

- *Example:* Two partners conspire to rob a bank; the partner inside hits a security guard over the head with a brass statue; the getaway driver outside is vicariously liable for the battery under Pinkerton.
- **Foreseeability Limit on Pinkerton Liability:** A co-conspirator is not liable for collateral crimes that are outside the foreseeable scope of the agreed criminal enterprise.
 - *Example:* Two executives conspire to bribe a building inspector; while driving away, one speeds through a red light and kills a pedestrian; the other executive is not liable for manslaughter because a traffic death is not foreseeable in a bribery scheme.
- **Innocent Agent Doctrine:** A defendant who uses an unwitting, coerced, or non-culpable third party to perform the physical actus reus is treated as the principal actor in the first degree.
 - *Example:* A corporate executive creates fake invoices and tricks an innocent clerk into clicking the button that wires corporate funds into his shell company; the executive is liable as a principal.
- **Common Law Classification of Parties:** At traditional common law, the person who actually performs the actus reus is a principal in the first degree; a person present aiding and abetting is a principal in the second degree; and a person who aids beforehand but is absent during the crime is an accessory before the fact.
 - *Example:* A mastermind provides museum blueprints and escape plans to a thief but stays home while the thief breaks in; the mastermind is an accessory before the fact.
- **Accessory After the Fact:** An accessory after the fact is one who receives, relieves, comforts, or assists a felon knowing they committed a felony, with the specific intent to hinder their arrest, trial, or punishment.
 - *Example:* A homeowner hides an armed bank robber in her basement from police after the robber confesses his crime; she is an accessory after the fact.

Homicide: Murder & Manslaughter

- **Malice Aforethought Mental States:** Common law murder requires malice aforethought, satisfied by any of four states of mind: intent to kill (express malice), intent to inflict serious bodily harm, depraved-heart recklessness, or felony murder.
 - *Example:* A disgruntled worker fires a rifle into the window of an occupied passenger train to cause a panic; when a passenger dies, he is guilty of depraved-heart murder based on extreme recklessness.
- **First-Degree Murder (Premeditation and Deliberation):** First-degree murder requires an intentional killing committed with premeditation and deliberation, or accomplished through inherently premeditated means like poison, torture, or lying in wait.
 - *Example:* A niece slips small, calculated doses of a lethal toxin into her uncle's morning coffee over seven consecutive days until he dies; the killing is first-degree murder by poison.
- **Depraved-Heart Second-Degree Murder:** Reckless indifference to an unjustifiably high risk to human life creates implied malice for second-degree murder, even with no intent to hit or kill anyone.
 - *Example:* A person drops a 50-pound bowling ball off a highway overpass into moving traffic, crushing a car windshield and killing the driver; the act is second-degree depraved-heart murder.

- **Voluntary Manslaughter (Adequate Provocation):** An intentional killing is mitigated to voluntary manslaughter if the defendant acted in the sudden heat of passion caused by adequate provocation that would inflame a reasonable person, without cooling off.
 - *Example:* A spouse walks into his bedroom and finds his partner in bed with another person, and immediately bludgeons the paramour to death with a bedside lamp; the homicide is mitigated to voluntary manslaughter.
- **Mere Words Are Never Adequate Provocation:** Under traditional common law, mere words, insults, verbal taunts, or insults to one's spouse alone never constitute adequate provocation to reduce murder to manslaughter.
 - *Example:* A man calls an acquaintance a pathetic loser whose family hates him; enraged, the acquaintance grabs a heavy steel wrench and strikes the man dead; the killing remains murder.
- **Imperfect Self-Defense Mitigation:** If a defendant kills under an honest but objectively unreasonable belief in the need for deadly self-defense, the unreasonable belief negates malice and mitigates murder to voluntary manslaughter.
 - *Example:* A homeowner shoots an intruder holding what the homeowner honestly but unreasonably believed was a deadly wooden club (when it was actually a foam prop); the charge is mitigated to voluntary manslaughter.
- **Involuntary Manslaughter (Criminal Negligence):** Involuntary manslaughter is an unintentional killing caused by criminal negligence (a gross deviation from the standard of care) or during the commission of an unlawful misdemeanor.
 - *Example:* A thief steals a \$50 bicycle and pedals recklessly down a crowded public sidewalk to escape, striking and killing an elderly pedestrian; the crime is involuntary manslaughter under the misdemeanor-manslaughter rule.
- **Transferred Intent in Completed Homicides:** Under transferred intent, if a defendant fires a gun intending to kill one specific person but misses and kills an innocent bystander, the intent to kill transfers to make the defendant guilty of the intentional murder of the bystander.
 - *Example:* A sniper fires at a target with premeditation, misses, and the bullet kills an unintended bystander; the premeditated intent to kill transfers, making the shooter guilty of first-degree murder of the bystander.
- **Transferred Intent Does Not Apply to Attempted Murder:** Transferred intent applies only to completed crimes; an attempted murder prosecution requires the specific intent to kill the specific victim who survived.
 - *Example:* A defendant places a bomb in an executive's office to kill him, but the blast merely injures an unexpected janitor; the defendant cannot be convicted of attempted murder of the janitor.
- **Transferred Justification in Self-Defense:** When an actor is legally justified in using proportionate deadly force against an attacker, that justification transfers to protect the actor if an unintended bystander is accidentally killed without recklessness.

- *Example:* A victim fires a handgun in lawful self-defense at a knife-wielding robber, and the bullet passes through the robber's arm and kills a bystander behind him; the self-defense justification transfers to the bystander's death.
- **Reckless Exercise of Self-Defense Strips Transferred Justification:** If an actor responds to an attack in self-defense but exercises that defense with extreme recklessness toward a crowd of innocent bystanders, they are liable for depraved-heart murder or manslaughter.
 - *Example:* A victim repels an attacker by closing his eyes and spraying an automatic weapon into a dense crowd of fifty people; the reckless disregard for the crowd supports a depraved-heart murder conviction for a bystander's death.

Felony Murder & Causation Rules

- **Inherently Dangerous Felony Predicate (BARRK):** Felony murder applies only if a death occurs during the commission or attempted commission of an inherently dangerous felony: **B**urglary, **A**rson, **R**ape, **R**obbery, or **K**idnapping.
 - *Example:* A thief running away with a stolen \$50 bicycle accidentally knocks over and kills an elderly pedestrian; felony murder does not apply because petit theft is a non-dangerous misdemeanor.
- **Res Gestae and Immediate Flight:** A felony continues through its immediate flight until the felons reach a place of temporary safety; deaths occurring during the getaway remain subject to the felony murder rule.
 - *Example:* An armed robber speeds away from a jewelry store and strikes a pedestrian at an intersection three blocks away before reaching a safe house; she is liable for felony murder.
- **The Merger Doctrine (The Ireland Rule):** A felony cannot serve as the predicate for felony murder if it is an integral, assaultive part of the homicide (like aggravated assault or battery); independent felonies with separate purposes (like robbery or arson) do not merge.
 - *Example:* A tenant sets fire to an office building to kill his landlord, and the fire spreads and kills an overnight janitor; the arson does not merge because it has an independent felonious purpose (destroying property), supporting felony murder for the janitor's death.
- **Agency Theory of Felony Murder:** In an agency theory jurisdiction, a felon is liable for felony murder only if the fatal shot or act was performed by a co-felon; killings directly committed by police officers or victims are excluded.
 - *Example:* During a bank robbery, a police officer fires at a fleeing felon but misses and kills a bank teller; under the agency theory, the felons are not liable for felony murder.
- **The Redline Rule (Death of a Co-Felon):** Under the Redline rule, surviving felons are not liable for felony murder when a police officer or resisting victim justifiably kills a co-felon during the crime.
 - *Example:* A warehouse security guard shoots and kills an armed burglar inside a facility; the surviving lookout waiting in the car outside is not liable for felony murder for his co-felon's death.
- **Provocative Act Doctrine (Human Shields):** Even in an agency jurisdiction, a felon is liable for murder if they commit an intentional, highly reckless provocative act (such as using a hostage as a human shield and firing at police) that provokes lethal return fire that kills an innocent person.

- *Example:* A bank robber drags a customer outside, uses her as a human shield, and shoots at police officers; when officers return fire and accidentally kill the customer, the robber is guilty of murder under the provocative act doctrine.
- **Ordinary Medical Negligence Is a Foreseeable Intervening Act:** Ordinary medical malpractice or post-operative infections during treatment for an inflicted wound are foreseeable dependent intervening acts that do not break the chain of proximate cause.
 - *Example:* A shooter wounds a victim in the leg; the hospital doctor negligently administers the wrong blood type during a routine transfusion and the victim dies; the shooter remains the proximate cause of death.
- **Gross Medical Malpractice as a Superseding Cause:** Grossly reckless, extraordinary medical malpractice (like operating while heavily intoxicated and severing an unrelated artery) is an unforeseeable superseding cause that severs proximate cause for murder.
 - *Example:* An assailant stabs a victim in the stomach; the treating surgeon operates while heavily intoxicated and severs a major chest artery, causing fatal blood loss; the surgeon's gross recklessness breaks proximate cause, limiting the assailant to attempted murder.
- **Natural Disasters as Superseding Causes:** An unprecedented, extraordinary act of nature (like an earthquake or unpredicted hospital fire) that causes a victim's death during recovery severs proximate cause from the original assault.
 - *Example:* An arsonist sets fire to his own warehouse, and an unprecedented localized earthquake suddenly collapses the exterior wall onto a responding firefighter outside; the earthquake is a superseding cause cutting off homicide liability.
- **Lawful Removal of Life Support Does Not Sever Causation:** A family or physician's decision to legally remove an irreversibly comatose or braindead victim from artificial life support is a foreseeable dependent act that does not break proximate cause.
 - *Example:* An assailant poisons a victim, putting him in an irreversible coma; 15 months later, his family disconnects the respirator and he dies; the removal of life support does not sever legal causation.
- **The Common Law Year-and-a-Day Rule:** Under traditional common law, a defendant cannot be convicted of criminal homicide if the victim dies more than one year and one day after the fatal wound was inflicted; the defendant remains liable only for attempted murder.
 - *Example:* An assailant shoots a victim in the chest, and the victim remains in a coma and dies from complications exactly 14 months later; traditional common law bars a murder conviction under the year-and-a-day rule, but permits attempted murder.

Property & Theft Crimes

- **Larceny (Trespassory Taking of Possession):** Larceny requires a trespassory taking and asportation of tangible personal property from the possession of another with the contemporaneous specific intent to permanently deprive.
 - *Example:* A homeowner breaks the exterior padlock on a neighbor's detached shed at night and carries off a power chainsaw intending to keep it; he has committed common law larceny.

- **The Continuing Trespass Doctrine:** If a defendant takes property wrongfully without permission (trespassory) but without the intent to steal, and later decides to keep it permanently, the continuing trespass doctrine connects the initial trespass to the later intent to steal.
 - *Example:* A person takes an acquaintance's bicycle from a yard without permission intending only to borrow it for an afternoon, and later that evening decides to keep it permanently; he is guilty of larceny under continuing trespass.
- **Innocent Taking Bars Continuing Trespass:** If the defendant's initial taking was completely innocent and non-trespassory (honestly believing the property was their own or abandoned), a subsequent decision to keep the item does not trigger continuing trespass and cannot be larceny.
 - *Example:* A diner takes an umbrella from a restaurant coat rack honestly believing it is his own identical umbrella, and discovers the real owner's name two hours later but decides to keep it; he is not guilty of larceny because the initial taking was not trespassory.
- **Larceny of Lost Property:** A finder commits larceny of lost or mislaid property only if, at the exact time of finding, they know the owner's identity or have immediate clues to ownership, yet take possession with the contemporaneous intent to steal.
 - *Example:* A passerby picks up a wallet dropped on the sidewalk, immediately inspects a driver's license showing the owner's name, and pockets the cash while throwing the wallet away; he has committed larceny.
- **Breaking Bulk by Bailees:** A bailee who has lawful possession of a sealed container commits larceny (not embezzlement) if they pry open the container and take the enclosed contents, because opening the container breaks bulk and terminates lawful possession.
 - *Example:* A delivery driver hired to transport a locked chest of gold coins pries the chest open on the road, pockets a handful of coins, and delivers the rest; he is guilty of larceny under the breaking bulk doctrine.
- **Embezzlement (Conversion from Lawful Possession):** Embezzlement is the fraudulent conversion of property by an employee, corporate officer, or bailee who already had lawful, trusted possession of the property prior to the conversion.
 - *Example:* A bank teller receives a \$100 cash deposit from a customer, places it in her till, and later that afternoon pockets the bill to pay for personal groceries; she has committed embezzlement.
- **Custody vs. Possession for Low-Level Employees:** Low-level employees (like store clerks, mechanics, or janitors) have mere custody of an employer's goods on the premises; taking those goods for personal use is a trespassory taking constituting larceny, not embezzlement.
 - *Example:* A bank janitor sweeping an office finds an envelope of cash on a manager's desk, tears it open, and pockets the money; because a janitor has mere custody rather than lawful possession, his crime is larceny.
- **False Pretenses (Obtaining Title Through Deceit):** False pretenses occurs when the defendant obtains legal title (ownership) to the property of another by an intentional false statement of past or existing material fact, with intent to defraud.

- *Example:* An art dealer sells a cheap replica painting for \$100,000 by intentionally misrepresenting it as an authenticated original Picasso; because the buyer transfers full ownership of the \$100,000 cashier's check, the crime is false pretenses.
- **Larceny by Trick (Obtaining Mere Custody Through Deceit):** Larceny by trick occurs when a defendant uses intentional fraud or misrepresentation to obtain mere custody or temporary possession of property, intending to steal it from the start.
 - *Example:* A customer rents a luxury sports car using a fake driver's license and stolen credit card, intending from the start to drive it to another country and sell it; because a rental agency transfers only temporary custody and not legal title, the crime is larceny by trick.
- **Robbery (Force or Fear from Person or Presence):** Robbery is larceny committed by taking property from the person or presence of the victim through physical force or the threat of immediate bodily harm.
 - *Example:* An armed robber points a gun at a bank teller and demands cash from the safe in her immediate work area; the taking is accomplished through threat of immediate harm from her presence, constituting robbery.
- **Sudden Snatching Without Force Is Larceny, Not Robbery:** Quickly snatching an item (like a purse or wallet) without resistance, struggling, or physical injury lacks the necessary force or intimidation to elevate larceny to robbery.
 - *Example:* A thief walks up behind a woman and swiftly snatches her purse off her shoulder without any struggle or injury; the crime is larceny, not robbery.
- **Force Must Coincide with Taking to Constitute Robbery:** Using force solely to escape after a non-violent theft has already ended constitutes battery or assault, not robbery, in traditional jurisdictions.
 - *Example:* A thief borrows an unattended bicycle without force; hours later, the owner spots him and grabs the handlebars, and the thief punches the owner to get away; the punch is a battery, but the theft was not robbery.
- **Robbery Extends to Property in Adjacent Rooms (Presence):** Property is within the victim's presence for robbery if the victim is restrained by force from defending or retaining it, even if the property is located in another room of the building.
 - *Example:* A burglar breaks into a home, locks the resident in an upstairs bathroom at gunpoint, and goes downstairs to take a television from the living room; the theft of the television is robbery.
- **Extortion (Blackmail by Threat of Future Harm):** Extortion is obtaining property from another by threats of future harm (including reputational exposure, economic injury, or physical violence in the future).
 - *Example:* A coworker threatens to report an employee to their boss tomorrow for stealing supplies unless the employee pays \$500 cash; because the threat involves future economic harm rather than immediate violence, the crime is extortion.
- **The Claim-of-Right Defense in Common Law Thefts:** At traditional common law, taking property under an honest belief of entitlement to satisfy a specific, liquidated debt negates the intent to steal, defeating larceny and robbery charges.
 - *Example:* A lender threatens an acquaintance with a knife to recover the exact \$500 cash owed on an overdue loan; at traditional common law, his claim of right negates the felonious intent to steal.

- **Claim of Right Inapplicable to Disputed Tort Claims:** The claim-of-right defense never applies to the forcible collection of unliquidated, disputed tort claims (such as estimating car repair damages).
 - *Example:* An owner demands \$1,000 at bat-point from a neighbor who bumped her parked car; claim of right fails because unliquidated tort damages cannot be collected by force.
- **Forgery Is Complete Upon the Making:** Forgery is making or altering a false writing with apparent legal significance with the specific intent to defraud; the crime is complete the moment the document is created, even if it is never cashed or presented.
 - *Example:* A person finds a blank check belonging to an acquaintance, signs the acquaintance's name to it, fills in an amount of \$500, and leaves it in her desk drawer; she is guilty of completed forgery even though she never tried to cash it.
- **Uttering Is a Distinct Offense:** Uttering is the separate crime of offering or presenting a forged document as genuine with knowledge that it is false and intent to defraud.
 - *Example:* A person presents a forged cashier's check to a retail store clerk to buy a laptop; presenting the fake document constitutes the distinct crime of uttering.
- **Receiving Stolen Property Requires Knowledge at Receipt:** Receiving stolen property requires taking possession of stolen property while knowing it to be stolen at the exact time of receipt; learning later that an item was stolen does not retroactively create the crime.
 - *Example:* A buyer purchases a gold watch for \$10 from a stranger in an alley, foolishly misunderstanding the slang "hot" and believing the watch was legitimate; she is not guilty of receiving stolen property at purchase because she lacked subjective knowledge when taking possession.
- **Common Law Burglary Elements:** Common law burglary is the breaking and entering of the dwelling house of another in the nighttime with the specific intent to commit a felony inside.
 - *Example:* A thief breaks an exterior padlock to enter a detached storage shed not used for sleeping at midnight to steal tools; he is not guilty of common law burglary because a detached shed is not a dwelling house.
- **Houseboats Regularly Slept In Are Dwellings:** Any structure regularly used for sleeping purposes—including an occupied residential houseboat—qualifies as a dwelling house for common law burglary.
 - *Example:* An intruder breaks into an occupied residential houseboat moored at a marina at 2:00 AM to steal a laptop; the houseboat qualifies as a dwelling house for common law burglary.
- **Constructive Breaking in Burglary:** The breaking element of burglary is satisfied constructively if entry is gained through fraud, threats of force, or trickery.
 - *Example:* A man knocks on an apartment door at night, points a gun at the resident when she opens it, and forces his way inside to steal a television; his threat of force constitutes a constructive breaking.
- **Walking Through an Open Door Is No Breaking:** Entering through an already completely open door or window without moving it involves no physical force and does not satisfy the breaking element of common law burglary.

- *Example:* A thief enters a home through a front door left wide open for a breeze at midnight and steals jewelry; he is not guilty of common law burglary because entering an open door lacks a breaking.
- **Daytime Entry Defeats Common Law Burglary:** If the physical breaking and entering occurs during daylight hours, common law burglary is not committed, even if the intruder remains hidden inside until nighttime to steal.
 - *Example:* A thief climbs through an open window at 2:00 PM and hides under a bed until 1:00 AM to steal a painting; he is not guilty of common law burglary because the breaking and entry occurred in the daytime.
- **Common Law Arson Structural Charring Requirement:** Common law arson is the malicious burning of the dwelling house of another; the fire must cause actual physical charring to the structural fibers of the building itself, not merely smoke damage or the burning of furniture.
 - *Example:* A thief sets a guest bed on fire inside a home, destroying the mattress and leaving smoke stains on the walls without scorching or charring the wall studs or flooring; he is not guilty of common law arson.
- **Burning One's Own Property Is Not Common Law Arson:** Common law arson strictly requires burning the dwelling of another; burning your own house (such as for insurance fraud) does not satisfy common law arson.
 - *Example:* A homeowner sets his own residential house on fire at midnight to collect a fraudulent insurance payout; he is not guilty of common law arson because the building was his own dwelling.

Crimes Against the Person

- **Assault as Reasonable Apprehension of Battery:** Criminal assault is committed by an intentional overt act creating a reasonable apprehension of an imminent battery; an unloaded or fake weapon that the victim reasonably believes is real suffices.
 - *Example:* An assailant points a realistic plastic toy gun at a pedestrian and orders her into an alley; because the pedestrian reasonably believes the weapon is real, the assailant has committed assault.
- **Assault as Attempted Battery:** Criminal assault is also committed as an attempted battery—an overt act done with the specific intent to inflict harmful bodily contact, even if the victim is unaware of the attempt.
 - *Example:* A sniper fires a shot at a sleeping victim's head from a distance and misses; the sniper has committed criminal assault as an attempted battery despite the victim's lack of apprehension.
- **Battery Is an Unlawful Application of Force:** Criminal battery is a general intent crime requiring the unlawful application of physical force to the person of another, resulting in bodily injury or an offensive touching.
 - *Example:* A driver recklessly discharges a firearm into the air in a crowded area, and the falling bullet strikes a pedestrian's shoulder; the reckless application of force constitutes battery.
- **False Imprisonment (Unlawful Confinement):** Criminal false imprisonment is the intentional, unlawful confinement of a person to a bounded area without valid consent, through physical barriers or threats of force.

- *Example:* An assailant locks an office door from the outside and holds his boss at gunpoint for five hours inside her own office; he has committed false imprisonment.
- **Kidnapping Requires Asportation:** Kidnapping requires unlawful confinement accompanied by asportation (movement of the victim) that is substantial or increases the risk of harm.
 - *Example:* An assailant shoves a victim into a van at gunpoint and drives her 10 miles to an abandoned barn; the substantial relocation satisfies the asportation element for kidnapping.
- **Incidental Movement During Robbery Is Not Kidnapping:** Brief movements of a victim that are purely incidental to completing another crime (such as dragging a bank teller 15 feet across the lobby to a vault during a robbery) do not constitute kidnapping.
 - *Example:* An armed robber drags a bank clerk 15 feet into a walk-in vault and locks the door to escape; the movement is merely incidental to the robbery and does not support a separate kidnapping conviction.

Affirmative Defenses: Self-Defense, Insanity, Intoxication, Duress & Entrapment

- **Proportionate Force in Self-Defense:** A person may use deadly force in self-defense only if they reasonably believe they face an imminent threat of death or serious bodily injury; deadly force cannot be used against a non-deadly attack like a punch or shove.
 - *Example:* A pedestrian is punched in the face during an argument, pulls out a handgun, and shoots the unarmed puncher dead; self-defense fails because he used deadly force against non-deadly force.
- **Surrender Terminates the Aggressor's Peril:** Once an initial aggressor unequivocally withdraws, drops their weapon, and communicates their surrender, the victim's privilege to use deadly defensive force ends.
 - *Example:* An armed robber with a baseball bat sees the victim pull a gun, drops the bat, raises his hands, and yells "I give up!"; the victim who shoots the surrendering robber dead cannot claim self-defense.
- **The Castle Doctrine Exception to Retreat:** Even in minority jurisdictions requiring a person to retreat before using deadly force, the castle doctrine eliminates the duty to retreat when a person is attacked inside their own home or attached porch.
 - *Example:* An armed intruder kicks open a homeowner's front door wielding a machete; the homeowner has no duty to retreat out the back door and may shoot the intruder dead in self-defense.
- **Pretextual Provocation Bars Self-Defense:** An initial aggressor who provokes a physical altercation with the premeditated intent to create an excuse to kill the victim loses the right to claim self-defense.
 - *Example:* A man starts a non-deadly fistfight hoping his rival will draw a weapon so the man can shoot him under the guise of self-defense; the man's premeditated provocation bars any self-defense claim.
- **Battered Woman Syndrome and the Imminence Requirement:** Under traditional self-defense, sleeping abusers do not pose an imminent threat of death, barring a perfect self-defense claim; however, an honest, unreasonable belief mitigates the killing to voluntary manslaughter under imperfect self-defense.

- *Example:* An abused spouse shoots her sleeping husband after he threatens to kill her the next morning; traditional perfect self-defense fails for lack of imminence, but imperfect self-defense mitigates murder to voluntary manslaughter.
- **Defense of Others (Reasonable Belief Rule):** Under the modern majority rule, an intervenor is justified in using force to defend a third party if they reasonably believe the third party is facing an unlawful attack, even if that belief turns out to be mistaken.
 - *Example:* A passerby strikes a plainclothes officer who is forcefully wrestling a screaming woman, reasonably believing an unlawful assault is underway; the passerby is protected by defense of others under the reasonable belief rule.
- **Spring Guns Prohibited for Defense of Property:** Deadly mechanical traps (such as spring guns rigged to doors) can never be used to defend unoccupied property; deadly force is justified only to protect human life.
 - *Example:* A cabin owner rigs a spring-gun trap to an unoccupied vacation cabin door, shooting a stranded storm hiker in the leg; the owner is guilty of battery because mechanical deadly force cannot defend property.
- **Duress Excuses All Crimes Except Intentional Homicide:** Duress is a complete defense if the defendant committed a crime under a reasonable belief of an imminent threat of death or serious bodily harm from another human being, but it never excuses intentional murder.
 - *Example:* A criminal holds a gun to a woman's head and orders her to smash a store window and steal a laptop or be shot on the spot; she has a valid defense of duress to burglary and theft.
- **Duress Never Excuses Intentional Murder:** A defendant cannot invoke duress if ordered at gunpoint to kill an innocent person; the law demands that an individual choose their own death over taking an innocent life.
 - *Example:* An armed gang member orders a hostage to shoot and kill an innocent bystander or be killed immediately; duress is unavailable as a defense to the resulting murder charge.
- **Duress vs. Necessity (Source of Threat):** Duress involves coercion and commands issued by another human being; necessity involves choosing the lesser of two evils created by natural forces or medical emergencies.
 - *Example:* Two stranded hikers break into an unoccupied private cabin during a sudden blizzard to consume food and burn chairs to avoid freezing to death; their defense is necessity, not duress.
- **Necessity Does Not Justify Harming Innocent Property Owners:** The defense of necessity justifies property damage, but cannot be used to commit violent crimes or false imprisonment against an innocent property owner defending their home.
 - *Example:* Stranded storm hikers break into an occupied cabin and tie the resisting owner to a chair for three days to use his supplies; necessity does not excuse the false imprisonment of the innocent owner.
- **M'Naghten Insanity Rule:** Under the M'Naghten test, a defendant is legally insane if a mental disease or defect caused a defect of reason such that they did not understand the nature and quality of their act, or did not know that the act was wrong.

- *Example:* A man suffering from severe delusions kills his neighbor, genuinely believing the neighbor is a demon possessed by the devil and that he is saving the world; he is legally insane under M'Naghten.
- **Irresistible Impulse Is Excluded from M'Naghten:** Inability to control one's conduct or an irresistible urge to commit a crime does not qualify under the strict M'Naghten rule if the defendant understood the act was legally and morally wrong.
 - *Example:* A defendant understands that killing a person is illegal and wrong, but suffers from an irresistible compulsion caused by mental illness that forces him to kill; he is not insane under M'Naghten.
- **Voluntary Intoxication Negates Specific Intent Only:** Voluntary intoxication is a defense solely to specific intent crimes (like first-degree premeditated murder, attempt, burglary, or larceny) if it prevented the formation of the required intent; it is never a defense to general intent or reckless crimes.
 - *Example:* A severely drunk defendant breaks into a neighbor's house mistakenly believing it is his own home and falls asleep; his intoxication negates the specific intent to commit a felony inside, defeating burglary.
- **Voluntary Intoxication Does Not Qualify as Insanity:** A temporary psychosis or hallucination brought on solely by the voluntary ingestion of drugs or alcohol does not constitute a mental disease or defect for the insanity defense.
 - *Example:* A person voluntarily consumes LSD, hallucinates that his roommate is an attacking alien, and stabs him to death; he cannot assert an insanity defense because temporary drug-induced psychosis is not a mental disease.
- **Involuntary Intoxication Treated as Insanity for All Crimes:** Involuntary intoxication (being drugged unknowingly or suffering an unprecedented adverse reaction to prescribed medication) is a defense to all crimes—including general intent crimes—if it renders the defendant legally insane.
 - *Example:* A person takes allergy medication in the prescribed dosage, experiences an unprecedented adverse hallucination believing her neighbor is a zombie, and attacks him; involuntary intoxication provides a complete defense to battery.
- **Entrapment Requires Government Inducement and Lack of Predisposition:** Under the majority subjective test, entrapment is proven only if law enforcement originated the criminal plan and induced the defendant to commit a crime they were not otherwise predisposed to commit.
 - *Example:* An undercover officer repeatedly begs a law-abiding citizen with no criminal record to purchase drugs for him, appealing to sympathy over a fake terminal illness until the citizen relents; the citizen has a valid entrapment defense.
- **Merely Providing an Opportunity Defeats Entrapment:** Providing an opportunity or facility to commit a crime to a person who is already ready, willing, and predisposed to do so does not constitute entrapment.
 - *Example:* An undercover officer approaches an active drug dealer and uses a secret code word to buy narcotics; the dealer cannot claim entrapment because he was already predisposed to sell drugs.